

The federal government designated an American AI company a national security threat for refusing to allow unrestricted military use of its technology — while simultaneously using that same technology in active combat operations. Today, March 11, is the deadline for the Commerce Department to publish its list of state AI laws it considers “onerous.” Oklahoma has five AI bills moving and a new Chief AI Officer. The window for state-level AI governance is open. Whether it stays open depends on what happens next.

WHAT HAPPENED THIS WEEK

GOVERNANCE Pentagon Designates Anthropic a “Supply Chain Risk”; Company Files Suit

CNN, Axios, TechCrunch, NPR — Feb. 27 – Mar. 9

The Department of Defense formally designated Anthropic — maker of the AI model Claude, the only AI system deployed on Pentagon classified networks — a supply chain risk to national security. The label, previously reserved for firms linked to foreign adversaries, came after Anthropic refused to remove two contractual guardrails: no mass surveillance of U.S. citizens, no fully autonomous weapons. Defense Secretary Hegseth called the company “sanctimonious.” President Trump directed all federal agencies to stop using Anthropic's technology. OpenAI signed a Pentagon deal hours later. Anthropic filed suit on March 9, arguing the designation violates the First Amendment and exceeds statutory authority. Thirty former military and intelligence officials urged Congress to investigate. Dozens of researchers at OpenAI and Google filed an amicus brief supporting Anthropic.

POLICY RELEVANCE

First time a U.S. company has been publicly named a supply chain risk. For state officials who use or are considering federal AI tools: the question of who controls AI guardrails — the vendor, the government, or no one — is no longer hypothetical. If the federal government can punish a company for maintaining safety standards, the incentive structure for every AI vendor serving government shifts toward compliance over safety. Oklahoma's 47,000+ federal contractor employees work downstream of this decision.

REGULATION March 11 Federal Deadlines: Commerce to Evaluate State AI Laws, FTC to Issue Policy

Mondaq, King & Spalding, Baker Botts — Mar. 10

Today marks two critical deadlines from the December 2025 executive order. First, Commerce must publish its evaluation of which state AI laws it considers “onerous” — a precursor to potential federal preemption lawsuits by the DOJ's new AI Litigation Task Force. Second, the FTC must issue a policy statement on how Section 5 of the FTC Act applies to AI, including when state laws requiring alterations to AI outputs are preempted by federal law. The executive order also conditions roughly \$21 billion in BEAD broadband funds on states not maintaining “onerous” AI regulations. No state laws have yet been invalidated — that requires litigation — but the legal architecture for challenging state AI governance is being assembled.

POLICY RELEVANCE

Oklahoma has no comprehensive AI law that would likely be targeted, but the BEAD funding threat is real. Oklahoma is a BEAD recipient. State officials should confirm whether any pending AI legislation could be characterized as “onerous” under the executive order's framing, and whether broadband funding is at risk. The Commerce evaluation published today will clarify scope.

GOVERNANCE Oregon Passes AI Companion Chatbot Bill; Washington Close Behind

Troutman Pepper — Mar. 6–9

Oregon's SB 1546 passed both chambers, making it one of the first states to regulate AI companion chatbots with enforceable private action and statutory damages. Washington's HB 1170 passed the Senate 46-3 and awaits House concurrence. Chatbot bills also advanced in Arizona, Iowa, Georgia, Illinois, and New York. Utah's Digital Content Provenance Standards Act passed the legislature.

POLICY RELEVANCE

The chatbot safety wave is bipartisan and accelerating. Oklahoma's SB 1521 addresses chatbot regulation and age verification. Oregon's private right of action gives plaintiffs direct enforcement power — Oklahoma legislators should study whether SB 1521's enforcement mechanism is strong enough, or whether Oregon's model is a better template.

CAPABILITY Pro-Human AI Declaration Calls for Superintelligence Moratorium

TechCrunch — Mar. 7

A bipartisan coalition including MIT physicist Max Tegmark published the Pro-Human AI Declaration, signed by hundreds of experts and former officials. Its five pillars: keeping humans in charge, avoiding concentration of power, protecting human experience, preserving individual liberty, and holding AI companies legally accountable. Key provisions include an outright ban on superintelligence development until scientific consensus confirms safe deployment, mandatory off-switches, and prohibition of self-replicating AI architectures. Polling shows 95% of Americans oppose an unregulated race to superintelligence.

POLICY RELEVANCE

Ready-made language for state legislators who want to articulate a pro-innovation, pro-safety position. The five pillars map cleanly onto Oklahoma's stated "accountable innovation" framework. State leaders can reference this coalition to position their own AI governance as mainstream.

REGULATION Algorithmic Pricing Bills Multiply: Six New Bills in One Week

Troutman Pepper — Mar. 2

Georgia, Louisiana, Minnesota, Rhode Island, New Jersey, and Hawaii introduced or advanced bills targeting algorithmic pricing in groceries, housing, and transportation. Nebraska's dynamic pricing bill passed the legislature. These bills share common features: they define "surveillance pricing" as using personal data to charge different prices, and several include private rights of action.

POLICY RELEVANCE

Oklahoma has no surveillance pricing bill yet, but constituents are experiencing the practice. With six states introducing bills in a single week, model language is available. This is a consumer protection issue that polls well across party lines.

OKLAHOMA FOCUS

Oklahoma's AI Posture: Five Bills, One Chief AI Officer, Zero Comprehensive Framework

Oklahoma is building AI governance piece by piece. Here is the current picture.

HB 1782 — AI Education Innovation Act. Creates an advisory council and revolving fund for AI in Oklahoma schools. Passed House Appropriations 28-0 on March 4. Bipartisan, Republican-authored. Furthest along of Oklahoma's AI bills.

HB 3299 — Deepfake Protection. Rep. Neil Hays' bill makes it unlawful to create synthetic media depicting someone without consent when done with intent to harm. Passed House Criminal Judiciary unanimously. Modeled on Tennessee's ELVIS Act but extends protection to all individuals.

SB 1521 — Chatbot Regulation. Requires age verification and user data protections for AI chatbots. Co-authored by Rep. Maynard.

Rep. Maynard's Three-Bill Package. HB 3546 establishes that AI systems are not legal persons — liability stays with creators and operators. Two companion bills address chatbot safety for minors.

Chief AI Officer Tai Phan. Appointed November 2025. Told the Adobe Government Forum in February that Oklahoma's approach is “accountable innovation.” Current focus: using AI to audit procurement data and fix errors. The state's AI task force previously suggested reducing the government workforce from 21% to 13% of the population — so far, implementation has focused on augmentation rather than displacement.

OSDE Office of AI and Digital Learning. Led by Dr. Karen Leonard. Released model AI use policies for school districts and publishes monthly guidance for educators. Ahead of most states.

UCO Professor Laura Dumin named among the Top 50 Voices in Higher Education for 2026 for her work on AI in the classroom. Oklahoma has local expertise. The question is whether the legislature is listening.

SIGNAL / NOISE

SIGNAL: The OpenAI-Pentagon deal contains the same two restrictions Anthropic was punished for requesting.

OpenAI CEO Sam Altman announced his company's Pentagon agreement includes limitations on mass surveillance and autonomous weapons — the exact guardrails Anthropic insisted on. The difference appears to be contractual framing, not substance. The dispute was never about the restrictions. It was about who gets to set terms. For state officials evaluating AI vendors: watch what's in the contract, not what's in the press release.

NOISE: The executive order on state AI preemption.

Despite headlines, the executive order cannot preempt anything on its own. Only Congress can, and Congress explicitly declined to add AI preemption to both the One Big Beautiful Bill Act and the NDAA. The DOJ AI Litigation Task Force hasn't filed a single lawsuit. Thirty-six attorneys general have pushed back. The NCSL formally opposes federal preemption. States that slow-walk their AI governance out of fear of federal action are giving up real authority over a theoretical threat.

BY THE NUMBERS

159

AI laws passed by 46 states in 2025. Congress passed zero comprehensive AI laws in the same period. States are governing; the federal government is posturing.

1,000,000+

New Claude signups per day following the Pentagon confrontation. Anthropic surpassed ChatGPT in the App Store for the first time. Consumer markets rewarded the company the government punished.

28–0

Vote in Oklahoma's House Appropriations to advance HB 1782, the AI Education Innovation Act. Unanimous, bipartisan. AI in education is not controversial — it's the governance that gets complicated.

\$21 billion

In BEAD broadband funds the administration threatens to condition on states not having “onerous” AI laws. Oklahoma is a recipient. This is the leverage point.

FROM THE ANALYSTS

The Anthropic-Pentagon confrontation is the most important AI governance story of 2026 so far, and not for the reasons most coverage suggests. The real story isn't about one company's red lines. It's about the complete absence of law.

When Anthropic said its AI shouldn't be used for mass surveillance or autonomous weapons, both sides agreed those uses are already illegal under existing law. The Pentagon said so explicitly. So the fight was over whether a private company can put existing legal restrictions into a contract — and the government answered by calling that company a national security threat.

Meanwhile, the Pro-Human AI Declaration reports that 95% of Americans oppose an unregulated race to superintelligence. The consumer market rewarded Anthropic with record downloads. Congress still has not passed a single comprehensive AI law. The gap between public sentiment and federal action is a canyon — and that canyon is where state legislators live.

Oklahoma's piece-by-piece approach has advantages. HB 1782 on education is moving with bipartisan unanimity. HB 3299 on deepfakes is common-sense protection. Chief AI Officer Tai Phan is building internal capacity. But the pieces need a frame. Somewhere between “no regulation” and “California” there's an Oklahoma-sized approach to AI governance: practical, protective, and small enough to enforce. The work of building it belongs to this legislature, this session.

— David & Æ

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